

**Expungement Award
FINRA Dispute Resolution Services**

In the Matter of the Arbitration Between:

Claimant

Michael Albert Bruggemann

Case Number: 25-00736

vs.

Respondent

Osaic Services, Inc.

Hearing Site: Honolulu, Hawaii

Awards are rendered by independent arbitrators who are appointed pursuant to Rule 13806 of the Code of Arbitration Procedure (“Code”) to issue final, binding decisions. FINRA makes available an arbitration forum—pursuant to rules approved by the SEC—but has no part in deciding the award.

Nature of the Dispute: Associated Person vs. Member

The expungement hearing was conducted by videoconference.

REPRESENTATION OF PARTIES

For Claimant Michael A. Bruggemann (“Claimant”): Peter Lindholm, Esq., HLBS Law, Broomfield, Colorado.

For Respondent Osaic Services, Inc. (“Respondent”): Thomas Caldwell, Esq., Saretsky Hart Michaels + Gould PC, Birmingham, Michigan.

CASE INFORMATION

Statement of Claim filed on or about: April 9, 2025.

Claimant signed the Submission Agreement: April 9, 2025.

Statement of Answer filed on or about: May 30, 2025.

Respondent signed the Submission Agreement: May 30, 2025.

CASE SUMMARY

In the Statement of Claim, Claimant asserted a claim seeking expungement of customer dispute information from registration records maintained by the Central Registration Depository (“CRD”).

In the Statement of Answer, Respondent took no position on Claimant’s expungement request.

RELIEF REQUESTED

In the Statement of Claim, Claimant (CRD Number 5500983) requested:

1. Expungement of the underlying claim, customer dispute Occurrence Number 2147881, from his CRD record, pursuant to FINRA Rule 2080(b)(1)(A), as the claim, allegation, or information is factually impossible or clearly erroneous;
2. Expungement of the underlying claim, customer dispute Occurrence Number 2147881, from his CRD record, pursuant to FINRA Rule 2080(b)(1)(C), as the claim, allegation, or information is false;
3. Deletion of all Disclosure Reporting Pages accompanying the underlying claim, customer dispute Occurrence Number 2147881;
4. Any and all other relief that the Arbitrator deems just and equitable.

In the Statement of Answer, Respondent requested that all processing and forum costs of this proceeding, including the FINRA Member Surcharge Fee, be assessed against Claimant.

OTHER ISSUES CONSIDERED AND DECIDED

The Arbitrators acknowledge that they have each read the pleadings and other materials filed by the parties.

On April 10, 2025, Claimant advised that the customers in Occurrence Number 2147881 ("Customers") were served with a copy of the Statement of Claim within 10 days of filing the Statement of Claim and provided proof of service.

On June 4, 2025, Claimant advised that the Customers were served with a copy of the Statement of Answer within 10 days of its filing and provided proof of service.

On April 17, 2025, Claimant filed an email from Customer H in which she supported the expungement request.

The Panel conducted a recorded hearing by videoconference on November 20, 2025, so the parties could present oral argument and evidence on Claimant's request for expungement. Claimant appeared by videoconference at the expungement hearing. Respondent also appeared at the expungement hearing.

The Customers did not appear at the expungement hearing.

No authorized representative of a state securities regulator appeared at the expungement hearing.

The Panel noted Claimant's representation that a prior arbitration panel or court has not previously ruled on expungement of the same occurrence in the CRD.

The Panel reviewed the settlement documentation related to Occurrence Number 2147881, considered the amount of payment made to any party to the settlement, and considered other relevant terms and conditions of the settlement. The Panel noted that the settlement was not conditioned on any party to the settlement not opposing the expungement request and that Claimant did not contribute to the settlement amount.

The Panel relied upon the following documentary or other evidence:

The Panel relied upon the testimony of Claimant, the pleadings, and the documentary exhibits provided by Claimant. As to specific exhibits, among others, the Panel relied upon the affidavit of Customer H, in which she stated that she "fully support[s] the expungement of this false disclosure on his [Bruggemann] record." Customer H similarly stated in an April 16, 2025 email presented by Claimant that it was "my error to file a claim against Mr. Bruggeman." Claimant also provided a copy of the settlement entered between the Customers and Mr. Bruggeman's broker dealer at the time. Mr. Bruggemann was not a signatory to this settlement, made no payment in connection with it, and was not connected to its coming about.

AWARD

After considering the pleadings, the testimony and evidence presented at the expungement hearing, the Panel has decided in full and final resolution of the issues submitted for determination as follows:

1. The Panel awards the expungement of all references to Occurrence Number 2147881 from registration records maintained by the CRD for Claimant Michael Albert Bruggemann (CRD Number 5500983) with the understanding that, pursuant to Rule 2080, Claimant must obtain confirmation from a court of competent jurisdiction before the CRD will execute the expungement directive.

Unless specifically waived in writing by FINRA, parties seeking judicial confirmation of an arbitration award containing customer dispute expungement relief must name FINRA as an additional party and serve FINRA with all appropriate documents.

Pursuant to Rule 13805 of the Code, the Panel has made the following affirmative finding of fact:

The claim, allegation, or information is false.

The Panel has made the above finding based on the following reasons:

The Panel unanimously concludes, as to Occurrence Number 2147881, that the claim, allegation or information in the occurrence is false. Claimant presented evidence that the allegation - that the subject investment in the GPB Fund was unsuitable at the time entered - was wholly without merit. The investment was suitable in the circumstances. Moreover, Customer H, as spokesperson for the other two customers to whom she is related, supported the request for expungement and described the allegations as a false disclosure in a sworn affidavit.

2. Any and all claims for relief not specifically addressed herein are denied.

FEES

Pursuant to the Code, the following fees are assessed:

Filing Fees

FINRA Dispute Resolution Services assessed a filing fee* for each claim:

Initial Claim Filing Fee	= \$ 2,000.00
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**The filing fee is made up of a non-refundable and a refundable portion.*

Member Fees

Member fees are assessed to each member firm that is a party in these proceedings or to the member firm(s) that employed the associated person(s) at the time of the event(s) giving rise to the dispute. Accordingly, Respondent is assessed the following:

Member Surcharge	= \$ 2,600.00
Member Process Fee	= \$ 5,005.00

Late Pre-Hearing Cancellation Fees

Fees apply when a pre-hearing conference is cancelled within three business days of the scheduled conference:

July 9, 2025 cancellation requested by Parties	= \$ 300.00
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Total Late Pre-Hearing Cancellation Fees	= \$ 300.00
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The Panel has assessed the total late pre-hearing cancellation fees to Respondent.

Hearing Session Fees and Assessments

The Panel has assessed hearing session fees for each session conducted. A session is any meeting between the parties and the Arbitrator(s), including a pre-hearing conference with the Arbitrator(s), which lasts four (4) hours or less. Fees associated with these proceedings are:

One (1) pre-hearing session with the Panel @ \$1,725.00/session	= \$ 1,725.00
Pre-Hearing Conference: July 17, 2025 1 session	

One (1) hearing session on expungement request @ \$1,725.00/session	= \$ 1,725.00
Hearing: November 20, 2025 1 session	

Total Hearing Session Fees	= \$ 3,450.00
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The Panel has assessed the total hearing session fees to Claimant.

All balances are payable to FINRA Dispute Resolution Services and are due upon receipt.

ARBITRATION PANEL

Richard P. Regan	-	Public Arbitrator, Presiding Chairperson
Carol M. Egan	-	Public Arbitrator
Thomas P. Valenti	-	Public Arbitrator

I, the undersigned Arbitrator, do hereby affirm that I am the individual described herein and who executed this instrument, which is my award.

Concurring Arbitrators' Signatures

Richard P. Regan

Richard P. Regan
Public Arbitrator, Presiding Chairperson

11/26/2025

Signature Date

Carol M. Egan

Carol M. Egan
Public Arbitrator

11/26/2025

Signature Date

Thomas P. Valenti

Thomas P. Valenti
Public Arbitrator

11/25/2025

Signature Date

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November 28, 2025

Date of Service (For FINRA Dispute Resolution Services use only)